

CONTRACT: NDA - TechPartners Inc

Contract Details

Contract ID	C-004
Vendor	TechPartners
Expiry Date	2025-08-30
Version	v1.2
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Risk Level	Medium
Created By	Anjali Rao
Uploaded Date	2024-03-05

Contract Content

Contract Name: NDA - TechPartners Inc

Contract ID: C-004

This Non-Disclosure Agreement ("Agreement") is entered into as of [Effective Date] by and between TechPartners Inc, a corporation organized under the laws of [State/Country], with its principal office located at [Address] ("TechPartners"), and [Counterparty Name], a corporation organized under the laws of [State/Country], with its principal office located at [Address] ("Vendor"). TechPartners and Vendor may be referred to individually as a "Party" and collectively as the "Parties."

1. Definitions

For the purposes of this Agreement, the following terms shall have the meanings set forth below:

- (a) "Confidential Information" means any and all information disclosed by one Party ("Disclosing Party") to the other Party ("Receiving Party") in connection with this Agreement, whether disclosed orally, in writing, electronically, or by other means, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.
- (b) "Purpose" means the evaluation and discussion of potential business opportunities between the Parties.

2. Scope of Services

The Parties agree to exchange Confidential Information solely for the Purpose described above. Neither Party shall use the Confidential Information for any purpose other than the Purpose without the prior written consent of the Disclosing Party.

3. Term and Termination

(a) This Agreement shall commence on the Effective Date and remain in effect for a period of [Term Length, e.g., two years], unless terminated earlier by either Party upon thirty (30) days' written notice to the other Party.

(b) The obligations of confidentiality under this Agreement shall survive termination or expiration of this Agreement for a period of [Survival Period, e.g., three years].

4. Fees and Payment

No fees or payments are required under this Agreement, as it is solely intended to govern the exchange of Confidential Information.

5. Confidentiality

(a) The Receiving Party shall:

(i) Protect the Confidential Information using the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care;

(ii) Not disclose the Confidential Information to any third party without the prior written consent of the Disclosing Party; and

(iii) Limit access to the Confidential Information to its employees, agents, or representatives who have a need to know for the Purpose and are bound by confidentiality obligations no less restrictive than those contained herein.

(b) The obligations of confidentiality shall not apply to information that:

(i) Is or becomes publicly available without breach of this Agreement;

(ii) Was known to the Receiving Party prior to disclosure by the Disclosing Party;

(iii) Is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or

(iv) Is required to be disclosed by law, regulation, or court order, provided that the Receiving Party gives prompt notice to the Disclosing Party and cooperates in seeking a protective order or other appropriate remedy.

6. Data Protection

Each Party shall comply with all applicable data protection and privacy laws in connection with the exchange of Confidential Information under this Agreement.

7. Intellectual Property

(a) All intellectual property rights in and to the Confidential Information shall remain the exclusive property of the Disclosing Party.

(b) Nothing in this Agreement shall be construed as granting any license or rights under any intellectual property of the Disclosing Party, except as expressly set forth herein.

8. Warranties

(a) Each Party represents and warrants that it has the right to disclose its Confidential Information to the other Party.

(b) Except as expressly stated herein, all Confidential Information is provided "as is," and the Disclosing Party makes no warranties, express or implied, regarding the accuracy, completeness, or fitness for a particular purpose of the Confidential Information.

9. Liability Limitation

Neither Party shall be liable to the other for any indirect, incidental, consequential, or punitive damages arising out of or related to this Agreement, even if advised of the possibility of such damages.

10. Indemnity

Each Party agrees to indemnify, defend, and hold harmless the other Party from and against any claims, damages, losses, or expenses arising out of or related to the breach of this Agreement by the indemnifying Party.

11. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of [State/Country], without regard to its conflict of laws principles.

12. Dispute Resolution

(a) The Parties agree to attempt to resolve any disputes arising under this Agreement through good faith negotiations.

(b) If the Parties are unable to resolve the dispute through negotiation, the dispute shall be submitted to binding arbitration in accordance with the rules of [Arbitration Institution], and the arbitration shall take place in [City, State/Country].

13. Miscellaneous

(a) Entire Agreement: This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous agreements, understandings, or representations.

(b) Amendments: This Agreement may only be amended or modified by a written agreement signed by both Parties.

(c) Assignment: Neither Party may assign or transfer its rights or obligations under this Agreement without the prior written consent of the other Party.

(d) Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

(e) Waiver: No waiver of any provision of this Agreement shall be deemed a waiver of any other provision, nor shall any waiver constitute a continuing waiver.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

TechPartners Inc

By: _____

Name: _____

Title: _____

Date: _____

Vendor

By: _____

Name: _____

Title: _____

Date: _____